

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM, A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOHCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SR.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

Morris V. Toure of the City of Monrovia, Liberia.....Appellant)

Versus

) APPEAL
)

Velma B. Ross, Lavan S. Browne, Henry S. Soue, Rudolph N.)
Horace, Sarah G. Soue, Philip T. Ross, Prince T. Toe Sr.,)
Robert N. Toe, Wilmot W. Toe, Michael N. Toe, Munah S. Toe)
Gibson and Tony to be identified.....Appellees)

GROWING OUT OF THE CASE:

Morris V. Toure of the City of Monrovia, Liberia.....Petitioner)

Versus

) PETITION FOR
) DECLARATORY
) JUDGMENT

Velma B. Ross, Lavan S. Browne, Henry S. Soue, Rudolph N.)
Horace, Sarah G. Soue, Philip T. Ross, Prince T. Toe Sr.,)
Robert N. Toe, Wilmot W. Toe, Michael N. Toe, Munah S. Toe)
Gibson and Tony to be identified.....Respondents)

Heard: March 19, 2025

Decided: May 28, 2025

MR. JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

The facts as culled from the records reveal that the late Robert T. Toe and Rebecca Toe during their natural lives, acquired title to two (2) lots of land and constructed an unfinished building containing two (2) stores on the ground floor and an unfinished apartment above the two (2) stores. The unfinished building was leased to Morris V. Toure, appellant herein. In 2011, all the beneficiaries of the Intestate Estate of Robert T. Toe and Rebecca Toe, appellees herein, decided to sell the building mentioned herein and the proceeds realized therefrom distributed amongst the said heirs and beneficiaries. Accordingly, because the appellant was already in possession of the subject property, the heirs and beneficiaries of the late Robert T. Toe and Rebecca Toe decided to grant appellant the right of first refusal to purchase the said property. The property was initially priced at One Hundred and Fifty Thousand United States Dollars (US\$150,000.00) but the appellant negotiated with the appellees and they mutually agreed to a purchase price of One Hundred Thousand United States Dollars US\$100,000.00).

The appellant and appellees did not prepare a formal sale agreement; however, on November 10, 2011, the appellant paid to the appellees the amount of Ten Thousand United States Dollars (US\$10,000.00) and was issued a receipt by the appellees that indicated that each of the appellees, that is the ten beneficiaries and heirs of the late Robert T. Toe and Rebecca Toe received One Thousand United States Dollars (US\$1,000.00). However, the appellant subsequently started smaller amounts in bits and pieces to the appellees which eventually amounted to Thirty-Five Thousand Seven Hundred Eighty-Five (US\$35,785.00), leaving an unpaid balance of Sixty-Four Thousand Two Hundred and Fifteen United States Dollars (US\$64,215.00).

The appellees, upon realizing that the form and manner in which the appellant was paying the agreed purchase amount for the subject property would not benefit them, they contacted their legal counsel, the late Counsellor Theophilus C. Gould who through his office wrote the appellant a letter, informing him of the dissatisfaction of the appellees due to the manner and form in which the appellant was paying the purchase amount to them and then invited the appellant to his office for a conference on December 16, 2011, but the appellant failed to honor the said invitation and refused to show up. This led Counsellor Gould through his office, Kemp and Associates to write the appellant another letter citing him to a meeting on December 30, 2011. The appellant and his legal counsel, Counsellor Beyan D. Howard, showed up for this meeting and during this meeting, the appellees informed the appellant to pay the balance sale price for the subject property in a lump sum but the appellant made it clear that he was unable to pay the remaining purchase price of the subject property in a lump sum which led to the meeting ending in a deadlock.

The appellees again through their legal counsel wrote the appellant yet another letter on January 10, 2012, inviting him to another conference in order to come to a resolution of the said problem but the appellant failed to show up for the said meeting. This led the appellees through their administrators of the intestate estate for which they are beneficiaries to write the appellant on January 25, 2012, that the appellant due to his failure to pay the outstanding balance of the purchase price of the property in lump sum should proceed to their lawyer's office to take delivery of the previous money he had paid as they were refunding his money. The appellant then responded on the same January 25, 2012, that he had already made twenty-five percent (25%) payment of the sale price for the property; therefore, the law cannot allow the appellees to remove him from the property without allowing him to indicate when and how he (appellant) intends to pay the outstanding balance. Two days later, on January

27, 2012, the appellees wrote the appellant another letter this time notifying him to vacate the premises.

Upon receipt of the letter dated January 27, 2012, from the appellees, the appellant proceeded to file a petition for declaratory judgment before the Sixth Judicial Circuit, Civil law Court, praying the court to declare that:

- He (appellant) owes the appellees Sixty-Four Thousand Two Hundred and Fifteen United States Dollars (US\$64,215.00), representing the balance amount for the purchase of the subject property.
- The agreement between the appellant and the appellees for the purchase of the subject property and the subsequent partial payment of the purchase price was a binding contract for the sale of the subject property between the appellant and the appellee.
- The sale of the property by the Intestate Estate of Robert T. Toe and Rebecca Toe, represented by its administrators to Tony Lawal, should be declared illegal and null and void.

The appellees filed their returns to the petition basically contending that the appellant had no right to the property and that as admitted by the appellant, the property had already been sold to Praise O. T. Lawal alias Tony, pursuant to authorization from the Monthly and Probate Court for Montserrado County for Montserrado County and that the Thirty-Five Thousand Seven Hundred Eighty-Five (US\$35,785.00) that the appellees told the appellant to go pick up as a refund for the money the appellant had paid to the appellees but the appellant refused to do so; that co-appellees, Robert T. Toe and Robert N. Toe also filed separate returns in which they conceded receiving Two Thousand Three Hundred and Seventy-Five United States Dollars (US\$2,375.00) from the amount paid by the appellant for the purchase of the property and same being their share.

The trial court heard the disposition of law issues and thereafter ruled the case to trial and on May 18, 2012, the trial judge entered final judgment denying the petition for declaratory judgment on grounds that the appellant has legal remedies available to him especially so where the appellant admitted that the property had been sold to Praise O.T. Lawal by the

Intestate Estate of Robert T. Toe and Rebecca Toe under the authority of the Monthly & Probate Court and deed was issued and registered according to law; that whatever discussion and arrangement that was held between the parties were never consummated into an agreement to have been probated and registered as the law provides for transaction relating to real property.

The appellant announced an exception to this ruling of the trial judge and announced an appeal to this Court.

The appellant argued primarily in his bill of exceptions before this Court that the trial judge erred when he ruled that there are remedies under the law for the alleged wrong that may have been perpetrated against the appellant but the action is wrong as courts of record in this jurisdiction can declare the rights of a party regardless of whether the party has other remedies at law; that the judge erred when he failed to rule that under the doctrine of estoppels, the appellees were barred from raising issue about the manner in which they were being paid because it was the way they elected to do business with the petitioner; that the trial judge erred when he failed to address in his ruling the fundamental issue of whether the appellees had the authority in law or equity to sell the subject property to a third party without a court of competent jurisdiction first declaring the instrument which was written and signed by the appellees null and void.

The issue we must decide to bring an end to this dispute is whether the trial judge erred when he denied the appellant's petition for declaratory judgment?

We answer this issue in the negative. The facts are clear that the appellant made partial payment toward the purchase of the property but said payments were not substantial payment to give him rights over the property. The appellant's primary argument is that because he has made partial payment toward the said property, the subsequent action by the administrators of the property (the appellees) in selling the property to a third party is illegal; therefore, this Court should reverse the decision of the lower court in declining to declare that the agreement reached between him and the appellees is binding and that he owes the appellees that he must pay the balance amount owed the appellees for the property and be given ownership over the property.

Firstly, this Court says that there is no showing in the records that the parties entered into any agreement for the sale of the said property, both parties have acknowledged that whatever

agreement they had concerning the sale of said property was verbal and not in writing. The statute of frauds which has been adopted in our jurisdiction provides that "a contract of sale of real property should be in writing". Black's Law Dictionary, Deluxe 11th Edition.

The appellant has also argued in his bill of exceptions that the trial judge erred when he failed to address the issue of whether the appellees had the authority in law or equity to sell the subject property to a third party without first declaring that the agreement between the parties was null and void.

This Court says it has searched the records but has failed to see any such agreement between the parties as referenced by the appellant. It is clear from the records that the parties did not have any formal written agreement between them stating the time frame required and the mode of payment for the property so as to enable this Court to properly and certainly say whether the agreement was breached by either party. The appellant has relied upon an oral agreement to assert claim to the said property but the appellees have argued that the appellant breached whatever oral agreement they had when he refused to pay a lump sum for the property as demanded by them but rather elected to pay for the property in piece-meal which led them to get sell the property to another potent and willing buyer.

The granting of declaratory judgment actions is discretionary to the judge presiding as the court may refuse to render or enter a declaratory judgment where such judgment, if rendered, would not terminate the uncertainty or controversy as in this case must be refused to be rendered and entertained. Civil Procedure Law, Rev. Code 1:43.5; *Isaac Cooper v. K & H Construction Company et al.*, 27 LLR 187, 196 (1978); *NHA v Intestate Estate of Bai et al*, 37 LLR 744, 751 (1995). Therefore, the trial judge did not err when he denied the appellant's petition for declaratory judgment.

It is our holding that the trial judge did not err when he denied the appellant's petition for declaratory judgment as the appellant does not have any right over the said property and there was no agreement between the parties that would have enabled him to declare either party rights.

WHEREFORE AND IN VIEW OF THE FOREGOING, the judgment of the lower court is affirmed with modification, the appellees are obligated to refund the total amount made to them by the appellant and the sale of the appellees to the second buyer is declared valid. The Clerk of this Court is ordered to send a mandate to the lower court commanding the judge presiding therein to resume jurisdiction and give effect to this judgment. Costs are ruled against the appellant. IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR JEROME B. KOLLEH OF THE LEGAL CONSULTANCY, INC., APPEARED FOR THE APPELLANT. COUNSELLOR J. JOHNNY MOMOH APPEARED FOR THE APPELLEES.

Judgment affirmed.